

GIGGGS, INC.

Action By Unanimous Written Consent of the Board of Directors

In accordance with Sections 108(c) and 141(f) of the Delaware General Corporation Law and the Bylaws of Gigggs, Inc., a Delaware corporation (the "Company"), the undersigned, constituting all of the members of the Company' Board of Directors (the "Board"), hereby adopt the following resolutions effective as of the last date of execution set forth below:

1. Sale and Issuance of Securities to Y Combinator LLC

RESOLVED: That in connection with an investment in the Company by Y Combinator LLC ("YC") the Company is authorized to sell and issue to YC (i) 240,000 shares of the Company's common stock at a purchase price per share of \$0.00001 on the terms and conditions described in the Common Stock Purchase Agreement attached hereto as Exhibit A (the "Purchase Agreement") and (ii) a convertible security attached hereto as Exhibit B (the "Security").

RESOLVED FURTHER: That the Board determines that (i) the purchase price per share of \$0.00001 in consideration for the common stock issued pursuant to the terms and conditions of the Purchase Agreement constitutes full and adequate consideration for the shares, (ii) \$14,997.60 constitutes full and adequate consideration for the purchase of the Security and (iii) the shares of common stock, when issued in accordance with the terms of the Purchase Agreement, and the shares of capital stock issued in connection with the conversion of the Security, will be fully-paid and nonassessable outstanding shares of capital stock of the Company.

RESOLVED FURTHER: That the officers of the Company are authorized and directed to execute, verify and file all documents, and to take whatever actions, that are necessary or advisable to comply with all state and federal securities laws.

2. Omnibus Resolutions

RESOLVED: That the officers of the Company be, and each of them hereby is, authorized and empowered to take any and all such further action, to execute and deliver any and all such further agreements, instruments, documents and certificates and to pay such expenses, in the name and on behalf of the Company or such officer, as any such officer may deem necessary or advisable to effectuate the purposes and intent of the resolutions hereby adopted, the taking of such actions, the execution and delivery of such agreements, instruments, documents and certificates and the payment of such expenses by any such officer to be conclusive evidence of his or her authorization hereunder and the approval thereof.

RESOLVED FURTHER: That any and all actions taken by the officers of the Company to carry out the purposes and intent of the foregoing resolutions prior to their adoption are approved, ratified and confirmed.

IN WITNESS WHEREOF, the undersigned have executed this Action by Unanimous Written Consent of the Board of Directors as of the date set forth below opposite his name, which may be executed in one or more counterparts, each of which shall be deemed an original, and all of which shall constitute one and the same instrument. This action shall be filed with the minutes of the proceedings of this Board of Directors and shall be effective as of the last date of execution below. Any copy, facsimile or other reliable reproduction of this action may be substituted or used in lieu of the original writing for any and all purposes for which the original writing could be used, provided that such copy, facsimile or other reproduction be a complete reproduction of the entire original writing.

Breck Yunits

Date:

Benjamin Zulauf

Date:

Exhibit A

COMMON STOCK PURCHASE AGREEMENT

Exhibit B

CONVERTIBLE SECURITY

GIGGGS, INC.

COMMON STOCK PURCHASE AGREEMENT

This Common Stock Purchase Agreement (the "Agreement") is made as of May 6, 2009 by and among Gigggs, Inc., a Delaware corporation (the "Company"), Breck Yunits, Benjamin Zulauf (collectively, the "Founders"), and Y Combinator LLC (the "Purchaser").

In consideration of the mutual covenants and representations set forth below, the Company, the Founders and Purchaser agree as follows:

1. Purchase and Sale of the Shares. Subject to the terms and conditions of this Agreement, the Company agrees to sell to Purchaser and Purchaser agrees to purchase from the Company 240,000 shares of the Company's Common Stock, par value \$0.00001 per share (the "Shares"), at a price of \$0.00001 per share (the "Purchase Price"), for an aggregate purchase price of \$2.40. Purchaser shall deliver the aggregate Purchase Price set forth above to the Company by wire transfer or check, and the Company will issue, as promptly thereafter as practicable, a stock certificate, registered in the name of the Purchaser, reflecting the Shares.

2. Company Representations

A. Organization and Good Standing. The Company is a corporation duly organized, validly existing and in good standing under the laws of the State of Delaware. The Company has the requisite corporate power and authority to own and operate its properties and assets, to carry on its business as presently conducted, to execute and deliver this Agreement, and to issue and sell the Shares.

B. Capitalization. As of the date of this Agreement, the authorized capital stock of the Company consists of 8,000,000 shares of Common Stock, of which 6,400,000 shares are issued and outstanding. The outstanding shares have been duly authorized and validly issued in compliance with applicable laws, and are fully paid and nonassessable. The Shares, when issued and delivered and paid for in compliance with the provisions of this Agreement, will be duly and validly issued, fully paid and nonassessable.

C. Authorization. All corporate action on the part of the Company and its directors, officers and stockholders necessary for the authorization, execution and delivery of the Agreement, the authorization, sale, issuance and delivery of the Shares has been taken. The Agreement, when executed and delivered by the Company, will constitute a valid and binding obligation of the Company, enforceable in accordance with its terms.

D. Proprietary Information and Invention Assignment. Each Founder and all other employees of the Company have executed a Confidentiality Agreement (as defined below) in substantially the form provided to Purchaser for review. To the knowledge of the Company, no Founder or other employee is in violation of such Confidentiality Agreement or any prior employee contract or proprietary information agreement with any other corporation or third party.

3. Founders' Representation. Each of the Founders has executed an Employee Non-Solicitation, Confidentiality and Assignment Agreement (a "Confidentiality Agreement") in a form reasonably approved by the Purchaser.

4. Purchaser Representations

A. No Registration. Purchaser understands that the Shares have not been, and will not be, registered under the Securities Act of 1933, as amended (the "Securities Act") by reason of a specific exemption from the registration provisions of the Securities Act, the availability of which depends upon, among other things, the bona fide nature of the investment intent and the accuracy of such Purchaser's representations as expressed herein or otherwise made pursuant hereto.

B. Investment Intent. Purchaser is acquiring the Shares for investment for its own account, not as a nominee or agent, and not with the view to, or for resale in connection with, any distribution thereof, and Purchaser has no present intention of selling, granting any participation in, or otherwise distributing the same. Purchaser further represents that it does not have any contract, undertaking, agreement or arrangement with any person or entity to sell, transfer or grant participation to such person or entity or to any third person or entity with respect to any of the Shares.

C. Investment Experience. Purchaser has substantial experience in evaluating and investing in private placement transactions of securities in companies similar to the Company and acknowledges that Purchaser can protect its own interests. Purchaser has such knowledge and experience in financial and business matters so that Purchaser is capable of evaluating the merits and risks of its investment in the Company.

D. Speculative Nature of Investment. Purchaser understands and acknowledges that the Company has a limited financial and operating history and that an investment in the Company is highly speculative and involves substantial risks. Purchaser can bear the economic risk of Purchaser's investment and is able, without impairing Purchaser's financial condition, to hold the Shares for an indefinite period of time and to suffer a complete loss of Purchaser's investment.

E. Accredited Investor. Purchaser is an "accredited investor" within the meaning of Regulation D, Rule 501(a), promulgated by the Securities and Exchange Commission under the Securities Act.

F. Rule 144. Purchaser acknowledges that the Shares must be held indefinitely unless subsequently registered under the Securities Act or an exemption from such registration is available. Purchaser is aware of the provisions of Rule 144 promulgated under the Securities Act which permit limited resale of shares purchased in a private placement subject to the satisfaction of certain conditions, including among other things, the existence of a public market for the shares, the availability of certain current public information about the Company, the resale occurring not less than one year after a party has purchased and paid for the security to be sold, the sale being effected through a "broker's transaction" or in transactions directly with a "market maker" and the number of shares being sold during any three-month period not exceeding specified limitations. Purchaser understands that the current public information referred to above is not now available and the Company has no present plans to make such information available. Purchaser acknowledges and understands that the Company may not be satisfying the current public information requirement of Rule 144 at the time Purchaser wishes to sell the Shares, and that, in such event, Purchaser may be precluded from selling such securities under Rule 144, even if the other requirements of Rule 144 have been satisfied. Purchaser acknowledges that, in the event all of the requirements of Rule 144 are not met, registration under the Securities Act or an exemption from registration will be required for any disposition of the Shares. Purchaser understands that, although Rule 144 is not exclusive, the Securities and Exchange Commission has expressed its opinion that persons proposing to sell restricted securities received in a private offering other than in a registered offering or pursuant to Rule 144 will have a substantial burden of proof in establishing that an exemption from registration is available for such offers or sales and that such persons and the brokers who participate in the transactions do so at their own risk.

G. No Public Market. Purchaser understands and acknowledges that no public market now exists for any of the securities issued by the Company and that the Company has made no assurances that a public market will ever exist for the Company's securities.

H. Legends. Purchaser understands and agrees that the certificate evidencing the Shares, or any other securities issued in respect of the Shares upon any stock split, stock dividend, recapitalization, merger, consolidation or similar event, shall bear the following legends (in addition to any legend required by applicable state securities laws):

"THE SHARES REPRESENTED BY THIS CERTIFICATE HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR THE SECURITIES LAWS OF ANY STATE, AND MAY NOT BE SOLD, TRANSFERRED, ASSIGNED, PLEDGED OR HYPOTHECATED UNLESS AND UNTIL REGISTERED UNDER SUCH ACT AND/OR APPLICABLE STATE SECURITIES LAWS, OR UNLESS THE COMPANY HAS RECEIVED AN OPINION OF COUNSEL OR OTHER EVIDENCE, REASONABLY SATISFACTORY TO THE COMPANY AND ITS COUNSEL, THAT SUCH REGISTRATION IS NOT REQUIRED.

THE SHARES REPRESENTED BY THIS CERTIFICATE ARE SUBJECT TO A RIGHT OF FIRST REFUSAL HELD BY THE ISSUER OR ITS ASSIGNEE(S) AS SET FORTH IN THE COMMON STOCK PURCHASE AGREEMENT BETWEEN THE ISSUER AND THE ORIGINAL HOLDER OF THESE SHARES, A COPY OF WHICH MAY BE OBTAINED AT THE PRINCIPAL OFFICE OF THE ISSUER. SUCH RIGHT OF FIRST REFUSAL IS BINDING ON TRANSFEREES OF THESE SHARES."

5. Purchaser's Rights. Purchaser shall have the following rights with respect to the Shares:

A. As of the date of this Agreement, the Founders hold in the aggregate 80% of the Company's total authorized stock (the "Founders' Percentage Ownership"). As of the date of this Agreement, the Shares constitute 3% of the Company's total authorized stock (the "Purchaser's Percentage Ownership"). In the event that (i) the Company issues and sells additional equity securities to any or all of the Founders, or (ii) any or all of the Founders receive any equity securities of the Company from any third party (in each case, excluding (1) any shares issued to the Founders pursuant to any

option plan, purchase plan or other employee stock incentive program, or other arrangement made in connection with the Founders' status as service providers to the Company and (2) any purchase by a Founder of such securities in connection with an institutional financing), and such issuance(s) increase the Founders' Percentage Ownership, then Purchaser shall have the right to purchase additional shares of Common Stock ("Additional Shares") such that the increase in the Purchaser's Percentage Ownership is proportional to the increase in the Founders' Percentage Ownership. At the option of the Purchaser, the Additional Shares may be in the form of a warrant, with an exercise price equal to the fair market value of such Additional Shares at the time of grant.

B. So long as any of the Shares remain outstanding, the Company will not (directly or indirectly, by merger or otherwise), without the prior written approval of the Purchaser (which shall not be unreasonably withheld), or its successors or assigns:

(i) enter into a Change of Control transaction; provided, however, that no such approval shall be required if the proceeds to the Company or its stockholders upon the consummation of such Change of Control transaction are at least equal to \$1,500,000 in cash and/or publicly-traded stock;

(ii) adopt any equity incentive plan (the "Plan");

(iii) issue any equity securities, or securities convertible into or exercisable for equity securities, to any employee, consultant or director of the Company except pursuant to the Plan;

(iv) form any wholly-owned subsidiary of the Company or otherwise acquire the securities of any other entity;

(v) waive any provision of the Confidentiality Agreements (as defined above) or any other agreement between the Company and any of the Founders; or

(vi) agree to do any of the foregoing that is not expressly made conditional on obtaining the affirmative written approval of the Purchaser. For purposes of this Agreement, a "Change of Control" shall mean either (1) the acquisition of the Company by another entity by means of any transaction or series of related transactions (including, without limitation, any reorganization, merger or consolidation or stock transfer, but excluding any such transaction effected primarily for the purpose of changing the domicile of the Company), unless the Company's stockholders of record immediately prior to such transaction or series of related transactions hold, immediately after such transaction or series of related transactions, at least 50% of the voting power of the surviving or acquiring entity (provided that the sale by the Company of its securities for the purposes of raising additional funds shall not constitute a Change of Control hereunder) or (2) a sale of all or substantially all of the assets of the Company.

C. So long as any of the Shares remain outstanding, the Company shall furnish to the Purchaser the following:

(i) Annual Financial Statements. Within ninety (90) days after the end of each fiscal year of the Company, (i) until the Company has a month with gross revenues greater than \$100,000, an email report listing all persons holding equity (including any equity issued pursuant to any option plan) and debt of the Company and summarizing income and expenses for the prior year, or (ii) after the condition in clause (i) is satisfied, a consolidated balance sheet of the Company and its subsidiaries, if any, as of the end of such fiscal year and the related consolidated statements of income, stockholders' equity and cash flows for the fiscal year then ended, prepared in accordance with generally accepted accounting principles and certified by the Chief Executive Officer and the Chief Financial Officer of the Company;

(ii) Quarterly Business Summary. Within thirty (30) days after the end of each March, June, September, and December, a summary of the operations, financial condition and prospects of the Company as of the end of such quarter, including a summary of all significant corporate events which have occurred or which, if not subject to confidentiality obligations, are under current consideration by the Board of Directors;

(iii) Notices. Promptly after the commencement thereof, notice of all events, actions, suits, claims, proceedings, investigations and inquiries that could materially and adversely affect the Company or any of its affiliates; and

(iv) Other Information. Promptly, from time to time, such other information regarding the business, prospects, financial condition, operations, property or affairs of the Company and its subsidiaries as the Purchaser reasonably may request.

6. Lock-Up Period. Purchaser hereby agrees that Purchaser shall not sell, offer, pledge, contract to sell, grant any option or contract to purchase, purchase any option or contract to sell, grant any

right or warrant to purchase, lend or otherwise transfer or encumber, directly or indirectly, any Shares or other securities of the Company, nor shall Purchaser enter into any swap, hedging or other arrangement that transfers to another, in whole or in part, any of the economic consequences of ownership of any Shares or other securities of the Company, during the period from the filing of the first registration statement of the Company filed under the Securities Act, that includes securities to be sold on behalf of the Company to the public in an underwritten public offering under the Securities Act through the end of the 180-day period following the effective date of such registration statement (or such other period as may be requested by the Company or the underwriters to accommodate regulatory restrictions on (i) the publication or other distribution of research reports and (ii) analyst recommendations and opinions, including, but not limited to, the restrictions contained in NASD Rule 2711(f)(4) or NYSE Rule 472(f)(4), or any successor provisions or amendments thereto). Purchaser further agrees, if so requested by the Company or any representative of its underwriters, to enter into such underwriter's standard form of "lockup" or "market standoff" agreement in a form satisfactory to the Company and such underwriter. The Company may impose stop-transfer instructions with respect to securities subject to the foregoing restrictions until the end of any such restriction period.

7. Company's Right of First Refusal. Before any Shares acquired by the Purchaser pursuant to this Agreement (or any beneficial interest in such Shares) may be sold, transferred, encumbered or otherwise disposed of in any way (whether by operation of law or otherwise) by the Purchaser or any subsequent transferee (each a "Holder"), such Holder must first offer such Shares or beneficial interest to the Company and/or its assignee(s) as follows:

A. Notice of Proposed Transfer. The Holder shall deliver to the Company a written notice stating: (i) the Holder's bona fide intention to sell or otherwise transfer the Shares; (ii) the name of each proposed transferee; (iii) the number of Shares to be transferred to each proposed transferee; (iv) the bona fide cash price or other consideration for which the Holder proposes to transfer the Shares; and (v) that by delivering the notice, the Holder offers all such Shares to the Company and/or its assignee(s) pursuant to this section and on the same terms described in the notice.

B. Exercise of Right of First Refusal. At any time within 30 days after receipt of the Holder's notice, the Company and/or its assignee(s) may, by giving written notice to the Holder, elect to purchase all, but not less than all, of the Shares proposed to be transferred to any one or more of the proposed transferees, at the purchase price determined in accordance with Section 7.C.

C. Purchase Price. The purchase price for the Shares purchased by the Company and/or its assignee(s) under this section shall be the price listed in the Holder's notice. If the price listed in the Holder's notice includes consideration other than cash, the cash equivalent value of the non-cash consideration shall be determined by the Board of Directors of the Company in its sole discretion.

D. Payment. Payment of the purchase price shall be made, at the option of the Company and/or its assignee(s), in cash (by check), by cancellation of all or a portion of any outstanding indebtedness of the Holder to the Company and/or its assignee(s), or by any combination thereof within 30 days after receipt by the Company of the Holder's notice (or at such later date as is called for by such notice).

E. Holder's Right to Transfer. If all of the Shares proposed in the notice to be transferred to a given proposed transferee are not purchased by the Company and/or its assignee(s) as provided in this section, then the Holder may sell or otherwise transfer such Shares to that proposed transferee; provided that: (i) the transfer is made only on the terms provided for in the notice, with the exception of the purchase price, which may be either the price listed in the notice or any higher price; (ii) such transfer is consummated within 60 days after the date the notice is delivered to the Company; (iii) the transfer is effected in accordance with any applicable securities laws, and if requested by the Company, the Holder shall have delivered an opinion of counsel acceptable to the Company to that effect; and (iv) the proposed transferee agrees in writing to receive and hold the Shares so transferred subject to all of the provisions of this Agreement, including but not limited to this section, and there shall be no further transfer of such Shares except in accordance with the terms of this section. If any Shares described in a notice are not transferred to the proposed transferee within the period provided above, then before any such Shares may be transferred, a new notice shall be given to the Company, and the Company and/or its assignees shall again be offered the right of first refusal described in this section.

F. Termination of Right of First Refusal. The right of first refusal contained in this section shall terminate as to all Shares purchased hereunder upon the earlier of:

(i) the closing date of the first sale of Common Stock of the Company to the general public pursuant to a registration statement filed with and declared effective by the Securities and Exchange Commission under the Securities Act, and

(ii) the closing date of a Change of Control pursuant to which the holders of the outstanding voting securities of the Company receive securities of a class registered pursuant to Section 12 of the Securities Exchange Act of 1934, as amended.

8. Company Covenant. The Company will cause each current and future employee to execute a Non-Solicitation, Confidentiality and Assignment Agreement in a form approved by the Board of Directors.

9. General Provisions

A. Choice of Law. This Agreement shall be governed by the internal substantive laws, but not the choice of law rules, of Delaware.

B. Integration. This Agreement represents the entire agreement between the parties with respect to the purchase of the Shares by the Purchaser and supersedes and replaces any and all prior written or oral agreements regarding the subject matter of this Agreement.

C. Notices. Any notice, demand, offer, request or other communication required or permitted to be given by either the Company or the Purchaser pursuant to the terms of this Agreement shall be in writing and shall be deemed effectively given the earlier of (i) when received, (ii) when delivered personally, (iii) one business day after being delivered by facsimile (with receipt of appropriate confirmation), (iv) one business day after being deposited with an overnight courier service or (v) four days after being deposited in the U.S. mail, First Class with postage prepaid and return receipt requested, and addressed to the parties at the addresses provided to the Company (which the Company agrees to disclose to the other parties upon request) or such other address as a party may request by notifying the other in writing.

D. Successors. Any successor to the Company (whether direct or indirect and whether by purchase, merger, consolidation, liquidation or otherwise) to all or substantially all of the Company's business and/or assets shall assume the obligations under this Agreement and agree expressly to perform the obligations under this Agreement in the same manner and to the same extent as the Company would be required to perform such obligations in the absence of a succession. For all purposes under this Agreement, the term "Company" shall include any successor to the Company's business and/or assets which executes and delivers the assumption agreement described in this section or which becomes bound by the terms of this Agreement by operation of law. Subject to the restrictions on transfer set forth in this Agreement, this Agreement shall be binding upon Purchaser and its assigns.

E. Assignment; Transfers. Except as set forth in this Agreement, this Agreement, and any and all rights, duties and obligations hereunder, shall not be assigned, transferred, delegated or sublicensed by the Purchaser without the prior written consent of the Company (which shall not be unreasonably withheld). Except as set forth in this Agreement, any transfers in violation of any restriction upon transfer contained in any section of this Agreement shall be void, unless such restriction is waived in accordance with the terms of this Agreement.

F. Waiver. Either party's failure to enforce any provision of this Agreement shall not in any way be construed as a waiver of any such provision, nor prevent that party from thereafter enforcing any other provision of this Agreement. The rights granted both parties hereunder are cumulative and shall not constitute a waiver of either party's right to assert any other legal remedy available to it.

G. Severability. Should any provision of this Agreement be found to be illegal or unenforceable, the other provisions shall nevertheless remain effective and shall remain enforceable to the greatest extent permitted by law.

H. Adjustment for Stock Split. All references to the number of Shares and the purchase price of the Shares in this Agreement shall be adjusted to reflect any stock split, stock dividend or other change in the Shares which may be made after the date of this Agreement.

I. Arbitration

(1) Arbitration. IN CONSIDERATION OF THE PROMISES IN THIS AGREEMENT, THE PURCHASER AGREES THAT ANY AND ALL CONTROVERSIES, CLAIMS, OR DISPUTES WITH ANYONE (INCLUDING THE COMPANY AND ANY EMPLOYEE, OFFICER, DIRECTOR, SHAREHOLDER OR BENEFIT PLAN OF THE COMPANY IN THEIR CAPACITY AS SUCH OR OTHERWISE) ARISING OUT OF, RELATING TO, OR RESULTING FROM THIS AGREEMENT, SHALL BE SUBJECT TO BINDING ARBITRATION.

(2) Procedure. THE PURCHASER AGREES THAT ANY ARBITRATION WILL BE ADMINISTERED BY THE AMERICAN ARBITRATION ASSOCIATION ("AAA") AND THAT THE NEUTRAL ARBITRATOR WILL BE SELECTED IN A MANNER CONSISTENT WITH ITS NATIONAL RULES FOR THE RESOLUTION OF EMPLOYMENT DISPUTES. PURCHASER AGREES THAT THE ARBITRATOR SHALL HAVE THE POWER TO

DECIDE ANY MOTIONS BROUGHT BY ANY PARTY TO THE ARBITRATION, INCLUDING MOTIONS FOR SUMMARY JUDGMENT AND/OR ADJUDICATION AND MOTIONS TO DISMISS AND DEMURRERS, PRIOR TO ANY ARBITRATION HEARING. PURCHASER ALSO AGREES THAT THE ARBITRATOR SHALL HAVE THE POWER TO AWARD ANY REMEDIES, INCLUDING ATTORNEYS' FEES AND COSTS, AVAILABLE UNDER APPLICABLE LAW. PURCHASER UNDERSTANDS THAT THE COMPANY WILL PAY FOR ANY ADMINISTRATIVE OR HEARING FEES CHARGED BY THE ARBITRATOR OR AAA EXCEPT THAT PURCHASER SHALL PAY THE FIRST \$125.00 OF ANY FILING FEES ASSOCIATED WITH ANY ARBITRATION PURCHASER INITIATES. PURCHASER AGREES THAT THE ARBITRATOR SHALL ADMINISTER AND CONDUCT ANY ARBITRATION IN A MANNER CONSISTENT WITH THE RULES. THE PURCHASER AGREES THAT THE DECISION OF THE ARBITRATOR SHALL BE IN WRITING.

(3) Remedy. EXCEPT AS PROVIDED BY THE RULES AND THIS AGREEMENT, ARBITRATION SHALL BE THE SOLE, EXCLUSIVE AND FINAL REMEDY FOR ANY DISPUTE BETWEEN THE PURCHASER AND THE COMPANY. ACCORDINGLY, EXCEPT AS PROVIDED FOR BY THE RULES AND THIS AGREEMENT, NEITHER THE PURCHASER NOR THE COMPANY WILL BE PERMITTED TO PURSUE COURT ACTION REGARDING CLAIMS THAT ARE SUBJECT TO ARBITRATION. NOTWITHSTANDING, THE ARBITRATOR WILL NOT HAVE THE AUTHORITY TO DISREGARD OR REFUSE TO ENFORCE ANY LAWFUL COMPANY POLICY, AND THE ARBITRATOR SHALL NOT ORDER OR REQUIRE THE COMPANY TO ADOPT A POLICY NOT OTHERWISE REQUIRED BY LAW WHICH THE COMPANY HAS NOT ADOPTED.

J. Counterparts. This Agreement may be executed in one or more counterparts, each of which will be deemed an original, but all of which together will constitute one and the same agreement. Facsimile copies of signed signature pages shall be binding originals.

K. Independent Review. The parties acknowledge that, regardless of which party had primary responsibility for the drafting of this Agreement, each of the parties had the opportunity to review the terms hereof and to consult with independent legal counsel.

The parties represent that they have read this Agreement in its entirety. The Purchaser agrees to notify the Company of any change in its address below.

Y COMBINATOR LLC

Jessica Livingston, Partner

320 Pioneer Way Mountain View, CA 94041

GIGGGS, INC.

Benjamin Zulauf, President

Date:

FOUNDERS

Breck Yunits

Date:

THIS SECURITY AND THE STOCK ISSUABLE UPON THE CONVERSION HEREOF HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED. THEY MAY NOT BE SOLD, OFFERED FOR SALE, PLEDGED, HYPOTHECATED, OR OTHERWISE TRANSFERRED EXCEPT PURSUANT TO AN EFFECTIVE REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933, AS AMENDED OR AN OPINION OF COUNSEL SATISFACTORY TO THE COMPANY THAT REGISTRATION IS NOT REQUIRED.

GIGGGS, INC.

CONVERTIBLE SECURITY

This Convertible Security is issued to Y Combinator LLC by Gigggs, Inc., a Delaware corporation (the "Company"), concurrently with the Company's sale and issuance of shares of its common stock to the holder of this Security.

1. Conversion into Shares. In exchange for \$14,997.60 (the "Face Amount"), the receipt of which is hereby acknowledged, and subject to the terms and conditions hereinafter set forth, the holder of this Security is entitled, upon surrender of this Security at the principal office of the Company (or at such other place as the Company shall notify the holder hereof in writing), to receive from the Company up to the number of fully paid and nonassessable Shares (as defined below), that equals the quotient obtained by dividing (a) the Face Amount by (b) the Purchase Price (as defined below). Upon such conversion of this Security, the holder hereby agrees to execute and deliver to the Company all transaction documents related to the Qualified Equity Financing, including a purchase agreement and other ancillary agreements, with customary representations and warranties and transfer restrictions (including a 180-day lock-up agreement in connection with an initial public offering), and having the same terms as those agreements entered into by the other purchasers of the preferred stock. The holder also agrees to deliver the original of this Security (or a notice to the effect that the original Security has been lost, stolen or destroyed and an agreement acceptable to the Company whereby the holder agrees to indemnify the Company from any loss incurred by it in connection with this Security) at the closing of the Qualified Equity Financing for cancellation.

2. Definitions

(a) Purchase Price. The purchase price for the Shares shall be the price per share of equity securities sold to investors in a Qualified Equity Financing (the "Purchase Price").

(b) The Shares. The term "Shares" shall mean the class and series of preferred stock issued to investors in a Qualified Equity Financing.

(c) Qualified Equity Financing. The term "Qualified Equity Financing" is an equity financing pursuant to which the Company sells shares of its preferred stock with an aggregate sales price of not less than \$5,000,000 (excluding this Security) (or such lesser amount as the holder may approve in writing) with the principal purpose of raising capital.

(d) Change of Control. The term "Change of Control" shall mean either (1) the acquisition of the Company by another entity by means of any transaction or series of related transactions (including, without limitation, any reorganization, merger or consolidation or stock transfer, but excluding any such transaction effected primarily for the purpose of changing the domicile of the Company), unless the Company's stockholders of record immediately prior to such transaction or series of related transactions hold, immediately after such transaction or series of related transactions, at least 50% of the voting power of the surviving or acquiring entity (provided that the sale by the Company of its securities for the purposes of raising additional funds shall not constitute a Change of Control hereunder) or (2) a sale of all or substantially all of the assets of the Company.

3. Certificates for Shares. Upon the conversion of this Security, one or more certificates for the number of Shares so purchased shall be issued as soon as practicable thereafter.

4. No Fractional Shares or Scrip. No fractional shares or scrip representing fractional shares shall be issued upon the conversion of this Security, but in lieu of such fractional shares the Company shall make a cash payment therefor on the basis of the Purchase Price then in effect.

5. Representations and Covenants of the Company. The Company represents that all corporate actions on the part of the Company, its officers, directors and stockholders necessary for the sale and issuance of this Security have been taken. Further, the Company covenants that the Shares,

when issued pursuant to the conversion of this Security, will be duly and validly issued, fully paid and nonassessable and free from all taxes, liens, and charges with respect to the issuance thereof.

6. Representations and Warranties by the Holder. The holder represents and warrants to the Company as follows:

(a) This Security and the Shares issuable upon conversion thereof are being acquired for its own account, for investment and not with a view to, or for resale in connection with, any distribution or public offering thereof within the meaning of the Securities Act of 1933, as amended (the "Act").

(b) The holder understands that the Security and the Shares have not been registered under the Act by reason of their issuance in a transaction exempt from the registration and prospectus delivery requirements of the Act pursuant to Section 4(2) thereof, and that they must be held by the holder indefinitely, and that the holder must therefore bear the economic risk of such investment indefinitely, unless a subsequent disposition thereof is registered under the Act or is exempted from such registration.

(c) The holder has such knowledge and experience in financial and business matters that it is capable of evaluating the merits and risks of the purchase of this Security and the Shares and of protecting its interests in connection therewith.

(d) The holder is an "accredited investor" as such term is defined in Rule 501 of Regulation D promulgated under the Act.

7. Security Transferable. Subject to compliance with the terms and conditions of this Section 7, this Security and all rights hereunder are transferable, in whole or in part, without charge to the holder hereof (except for transfer taxes), upon surrender of this Security properly endorsed or accompanied by written instructions of transfer. With respect to any offer, sale or other disposition of this Security or any Shares acquired pursuant to the conversion of this Security prior to registration of such Security or Shares, the holder hereof agrees to give written notice to the Company prior thereto, describing briefly the manner thereof, together with a written opinion of such holder's counsel, or other evidence, if requested by the Company, to the effect that such offer, sale or other disposition may be effected without registration or qualification (under the Act as then in effect or any federal or state securities law then in effect) of this Security or the Shares and indicating whether or not under the Act certificates for this Security or the Shares to be sold or otherwise disposed of require any restrictive legend as to applicable restrictions on transferability in order to ensure compliance with such law. Upon receiving such written notice and reasonably satisfactory opinion or other evidence, if so requested, the Company, as promptly as practicable, shall notify such holder that such holder may sell or otherwise dispose of this Security or such Shares, all in accordance with the terms of the notice delivered to the Company. If a determination has been made pursuant to this Section 7 that the opinion of counsel for the holder or other evidence is not reasonably satisfactory to the Company, the Company shall so notify the holder promptly with details thereof after such determination has been made. Each certificate representing this Security or the Shares transferred in accordance with this Section 7 shall bear a legend as to the applicable restrictions on transferability in order to ensure compliance with such laws, unless in the aforesaid opinion of counsel for the holder, such legend is not required in order to ensure compliance with such laws. The Company may issue stop transfer instructions to its transfer agent in connection with such restrictions.

8. Rights of Stockholders. No holder of this Security shall be entitled, as a Security holder, to vote or receive dividends or be deemed the holder of the Shares for any purpose, nor shall anything contained herein be construed to confer upon the holder of this Security, as such, any of the rights of a stockholder of the Company or any right to vote for the election of directors or upon any matter submitted to stockholders at any meeting thereof, or to give or withhold consent to any corporate action (whether upon any recapitalization, issuance of stock, reclassification of stock, change of par value, consolidation, merger, conveyance, or otherwise) or to receive notice of meetings, or to receive dividends or subscription rights or otherwise until the Security shall have been converted and the Shares purchasable upon the conversion hereof shall have become deliverable, as provided herein.

9. Expiration. In the event this Security is not converted in connection with a Qualified Equity Financing, this Security shall expire and shall no longer be convertible upon the earlier to occur of:

(a) 5:00 p.m., California local time, on May 6, 2019;

(b) Any Change of Control; provided, however, that the holder may elect to convert this Security into shares of the Company's common stock at price equal to the value to be paid for a share of common stock of by the acquiring entity; or

(c) The initial public offering of the Company's Common Stock; provided, however, that the holder may elect to convert this Security into shares of the Company's common stock at price per share equal to the price to the public of the common stock in the offering. The Company shall provide at least twenty (20) days prior written notice of any event set forth in Section 9(b) or (c).

10. Notices. All notices and other communications required or permitted hereunder shall be in writing, shall be effective when given, and shall in any event be deemed to be given upon receipt or, if earlier, (a) five (5) days after deposit with the U.S. Postal Service or other applicable postal service, if delivered by first class mail, postage prepaid, (b) upon delivery, if delivered by hand, (c) one business day after the business day of deposit with Federal Express or similar overnight courier, freight prepaid or (d) one business day after the business day of facsimile transmission, if delivered by facsimile transmission with copy by first class mail, postage prepaid, and shall be addressed (i) if to the holder, at the holder's address as provided to the Company, and (ii) if to the Company, at the address of its principal corporate offices (attention: President), or at such other address as a party may designate by ten days advance written notice to the other party pursuant to the provisions above.

11. Registration Rights Agreement. The registration rights of the holder (including holders' successors) with respect to the common stock issuable upon conversion of the Shares will be the same as granted to the holders of Shares issued in the Qualified Equity Financing.

12. Governing Law. This Security and all actions arising out of or in connection with this Security shall be governed by and construed in accordance with the laws of the State of California, without regard to the conflicts of law provisions of the State of Delaware or of any other state.

13. Rights and Obligations Survive Conversion of Security. Unless otherwise provided herein, the rights and obligations of the Company, of the holder of this Security and of the holder of the Shares issued upon conversion of this Security, shall survive the conversion of this Security.

Issued May 6, 2009.

GIGGGS, INC.

Benjamin Zulauf, President

Date:

<http://news.ycombinator.com/doc?id=596735>